MOVEMENT OF FUNDS

A marked flurry of activity has been reported among ex-President Moi's family and their close associates to pre-empt any possibility of losing their wealth to the government.

In November 2003, ex-President Moi met at his home in Kabarak with his sons Phillip, Gideon, his long-term aide Kulie and his well-trusted household lawyer, Dr Kiplagat. During this meeting, the key topic of discussion was the family wealth, both local and international.

Ex-President Moi's lawyer advised them to secure their assets in overseas countries. He stated that there is no court ruling adjudging their wealth as illegal or corruptly obtained. As such, this would be a prerequisite for the government of Kenya to approach any foreign government to freeze any of their assets. The family was also advised to use proven trusts that are experienced at hiding pursued assets among select jurisdictions with relaxed laundering policies.

It was agreed that Kulei should relinquish all the assets held in trust by him on behalf of ex-President Moi and that this transfer be made in favour of companies controlled by ex-President Moi's children. This matter has brought serious friction between Kulei on one hand and Gideon and Phillip on the other. Physical threats were issued to Kulei during a meeting held at Phillip's house, following which Kulei approached Mr Tum, associated with Kenya Seed Company, to seek his intervention with ex-President Moi. Kulei feels that he is being asked to give more than he holds for and on behalf of ex-President Moi and that the sons are failing to distinguish between his personal wealth and that of their father. It has been reported that Gideon may transfer his assets from South Africa to Namibia where ex-President Moi, whose assets are presonally protected by President Sam Nujoma, has invested heavily.

Following the closure of the Kabarak meeting, each party made various moves, all geared towards securing their wealth as agreed. On the surface, it would appear that their individual plans are unrelated, but on the contrary a very well coordinated plan is being executed.

JOSHUA KULEI
Modus Operandi